

Quillfeather Analytics, Inc.

Data Processing Addendum

FICTIONAL SAMPLE DOCUMENT. Quillfeather Analytics, Inc. is an invented company. This document was created for testing a document-analysis application. It is not a real agreement, is not legal advice, and must not be relied upon for any purpose.

This Data Processing Addendum (this "DPA") forms part of the Subscription Agreement, Order Form, or other written or electronic agreement between Customer and Quillfeather Analytics, Inc. ("Quillfeather") that governs Customer's use of the Quillfeather product analytics platform (the "Services") (collectively, the "Agreement"). If the terms of this DPA conflict with any other term of the Agreement, this DPA prevails with respect to the Processing of Personal Data.

1. Definitions

Capitalized terms not defined in this DPA have the meanings given in the Agreement. In this DPA:

- "Data Protection Laws" means all laws applicable to the Processing of Personal Data under the Agreement, including the EU General Data Protection Regulation 2016/679 ("GDPR"), the UK GDPR and UK Data Protection Act 2018, the Swiss Federal Act on Data Protection, and the California Consumer Privacy Act as amended by the California Privacy Rights Act ("CCPA"), each as amended or replaced from time to time.
- "Personal Data" means any information relating to an identified or identifiable natural person that Quillfeather Processes on behalf of Customer in providing the Services.
- "Processing" means any operation performed on Personal Data, such as collection, recording, organization, storage, adaptation, retrieval, use, disclosure, combination, restriction, erasure, or destruction.
- "Controller", "Processor", "Data Subject", and "Supervisory Authority" have the meanings given in the GDPR. "Service Provider", "Business", "Sell", and "Share" have the meanings given in the CCPA.
- "Personal Data Breach" means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Personal Data transmitted, stored, or otherwise Processed by Quillfeather.
- "Subprocessor" means any third party engaged by Quillfeather that Processes Personal Data on behalf of Customer.
- "Standard Contractual Clauses" or "SCCs" means the standard contractual clauses approved by the European Commission Implementing Decision (EU) 2021/914 of 4 June 2021.
- "UK Addendum" means the International Data Transfer Addendum to the SCCs issued by the UK Information Commissioner under section 119A of the UK Data Protection Act 2018.

2. Scope, Roles of the Parties, and Restrictions on Use

2.1 Roles. For the purposes of Data Protection Laws, Customer is the Controller (or Business) and Quillfeather is the Processor (or Service Provider) of Personal Data. Where Customer acts as a Processor on behalf of a third-party Controller, Quillfeather is a Subprocessor, and Customer is responsible for obtaining any authorizations required from that Controller.

2.2 Customer Instructions. Quillfeather will Process Personal Data only on Customer's documented instructions. The Agreement, this DPA, and Customer's configuration of the Services constitute Customer's complete instructions. Quillfeather will promptly inform Customer if, in its opinion, an instruction infringes Data Protection Laws.

2.3 Details of Processing. The subject matter, nature, purpose, and duration of the Processing, and the types of Personal Data and categories of Data Subjects, are described in Schedule A.

2.4 Restrictions. Quillfeather will not (a) Sell or Share Personal Data; (b) retain, use, or disclose Personal Data for any purpose other than providing the Services, including for any commercial purpose other than the business purposes specified in the Agreement; (c) retain, use, or disclose Personal Data outside the direct business relationship between Customer and Quillfeather; or (d) combine Personal Data with personal information it receives from or on behalf of any other person, except as permitted by the CCPA.

2.5 Aggregated Data. Quillfeather may create de-identified and aggregated statistics derived from the Services ("Aggregated Data") to improve and secure the Services, provided that Aggregated Data does not identify Customer or any Data Subject and Quillfeather makes no attempt to re-identify it.

2.6 Customer Obligations. Customer is responsible for the accuracy and lawfulness of Personal Data and for having a lawful basis, including any required notices and consents, for Quillfeather's Processing under this DPA. Customer will not submit to the Services any special categories of Personal Data under Article 9 of the GDPR, government identification numbers, payment card data, or health information, unless expressly agreed in writing.

3. Confidentiality and Personnel

Quillfeather will ensure that all personnel authorized to Process Personal Data are bound by written confidentiality obligations, receive annual training on data protection and security, and access Personal Data only to the extent necessary to perform the Services.

4. Security

4.1 Quillfeather will implement and maintain appropriate technical and organizational measures to protect Personal Data against Personal Data Breaches, as described in Schedule B (the "Security Measures"). The Security Measures take into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of Processing, as well as the risks to Data Subjects.

4.2 Quillfeather maintains a SOC 2 Type II report and ISO/IEC 27001 certification for the Services. Upon written request, and no more than once per year, Quillfeather will provide Customer with a copy of its most recent audit report, subject to confidentiality obligations.

4.3 Quillfeather may update the Security Measures from time to time, provided that updates do not materially decrease the overall level of protection of Personal Data.

5. Subprocessors

5.1 Authorization. Customer grants Quillfeather general authorization to engage Subprocessors. The current list of Subprocessors is set out in Schedule C.

5.2 Obligations. Quillfeather will enter into a written agreement with each Subprocessor that imposes data protection obligations no less protective than those in this DPA. Quillfeather remains fully liable to Customer for each Subprocessor's performance of its obligations.

5.3 Notice and Objection. Quillfeather will notify Customer by email at least thirty (30) days before authorizing any new Subprocessor. Customer may object on reasonable data protection grounds within fifteen (15) days of the notice. If the parties cannot resolve the objection in good faith within thirty (30) days, Customer may terminate the affected Services and receive a pro-rata refund of prepaid fees for the terminated portion of the subscription term.

6. Data Subject Requests

Taking into account the nature of the Processing, Quillfeather will assist Customer by appropriate technical and organizational measures in fulfilling Customer's obligation to respond to requests from Data Subjects to exercise their rights of access, rectification, erasure, restriction, portability, and objection. The Services include a self-service deletion API. If Quillfeather receives a request directly from a Data Subject, it will forward the request to Customer within five (5) business days and will not respond except to direct the Data Subject to Customer.

7. Personal Data Breach Notification

7.1 Quillfeather will notify Customer without undue delay, and in any event within forty-eight (48) hours, after becoming aware of a Personal Data Breach. The notification will describe, to the extent known: the nature of the breach, the categories and approximate number of Data Subjects and records concerned, the likely consequences, and the measures taken or proposed to address the breach.

7.2 Quillfeather will take reasonable steps to contain, investigate, and mitigate the breach, and will provide Customer with updates as further information becomes available. Quillfeather's notification of or response to a Personal Data Breach is not an acknowledgement of fault or liability.

8. Data Protection Impact Assessments

Quillfeather will provide reasonable assistance to Customer, at Customer's expense where the assistance goes beyond Quillfeather's published documentation, with any data protection impact assessment and prior consultation with a Supervisory Authority that Customer is required to carry out under Data Protection Laws.

9. Data Retention, Return, and Deletion

9.1 During the subscription term, Personal Data is retained according to the retention period configured by Customer in the Services, which defaults to twenty-four (24) months of event history.

9.2 Upon termination or expiration of the Agreement, Customer may export Personal Data for thirty (30) days. Following that period, Quillfeather will delete all Personal Data from production systems within sixty (60) days, and from encrypted backups within a further ninety (90) days, unless retention is required by applicable law. On request, Quillfeather will certify deletion in writing.

10. Audits

10.1 Quillfeather will make available to Customer the information reasonably necessary to demonstrate compliance with this DPA, including the audit reports described in Section 4.2.

10.2 If the audit reports do not reasonably satisfy Customer's audit obligations under Data Protection Laws, Customer may, on at least thirty (30) days' written notice, conduct an on-site audit no more than once in any twelve (12) month period, during normal business hours, at Customer's expense, and subject to a confidentiality agreement. Additional audits are permitted where required by a Supervisory Authority or

following a Personal Data Breach.

11. International Data Transfers

11.1 **Hosting Location.** Personal Data is hosted in the data center region selected by Customer: the United States (default) or the European Union (Frankfurt, Germany). Subprocessors may access Personal Data from the locations listed in Schedule C.

11.2 **EEA Transfers.** To the extent Personal Data originating from the European Economic Area is transferred to a country that has not received an adequacy decision, the parties agree that Module Two (Controller to Processor) and, where applicable, Module Three (Processor to Processor) of the SCCs are incorporated into this DPA by reference, with the following selections: in Clause 7 the optional docking clause applies; in Clause 9 Option 2 (general written authorization) applies with the notice period set out in Section 5.3; in Clause 11 the optional language does not apply; in Clauses 17 and 18 the governing law and courts are those of Ireland. Annexes I and II of the SCCs are completed by Schedules A and B.

11.3 **UK and Swiss Transfers.** For transfers from the United Kingdom, the UK Addendum applies, with Table 4 selecting that neither party may terminate the UK Addendum. For transfers from Switzerland, the SCCs apply with references to the GDPR read as references to the Swiss Federal Act on Data Protection, and the competent supervisory authority is the Swiss Federal Data Protection and Information Commissioner.

11.4 **Data Privacy Framework.** Quillfeather self-certifies to the EU-U.S. Data Privacy Framework, the UK Extension, and the Swiss-U.S. Data Privacy Framework. Where that certification covers a transfer, the parties may rely on it in place of the SCCs.

11.5 **Government Access Requests.** If Quillfeather receives a legally binding request from a public authority for access to Personal Data, it will, unless legally prohibited, promptly notify Customer, challenge the request where there are reasonable grounds to do so, and disclose only the minimum Personal Data required.

12. Liability and Miscellaneous

12.1 Each party's liability arising out of or relating to this DPA is subject to the limitations and exclusions of liability in the Agreement.

12.2 This DPA terminates automatically when Quillfeather no longer Processes Personal Data on behalf of Customer. Sections 9 and 12 survive termination.

12.3 If any provision of this DPA is held invalid, the remaining provisions remain in full force. Except where Data Protection Laws or the SCCs require otherwise, this DPA is governed by the law that governs the Agreement.

Schedule A - Description of Processing (Annex I to the SCCs)

A. List of Parties

Role	Party
Data exporter (Controller)	Customer, as identified in the Agreement. Contact details as set out in the Order Form.
Data importer (Processor)	Quillfeather Analytics, Inc., 100 Example Avenue, Suite 400, Springfield, EX 00000. Privacy contact: Data Protection Officer, privacy@quillfeather.example

B. Description of Transfer

Categories of Data Subjects: End users of Customer's websites and mobile applications; Customer's employees and contractors who are authorized users of the Services.

Categories of Personal Data:

- Online and device identifiers: cookie IDs, advertising IDs (IDFA/AAID), device IDs, IP addresses, browser type, and operating system;
- Usage and event data: pages viewed, features used, clicks, session duration, and timestamps;
- Coarse location derived from IP address (country, region, city);
- Any user properties Customer chooses to send, which may include name, email address, and account ID;
- For authorized users: name, business email address, job title, and login activity.

Special categories of data: None. Customer shall not send special categories of Personal Data to the Services.

Frequency of transfer: Continuous, for the duration of the Agreement.

Nature and purpose of Processing: Collection, storage, analysis, and visualization of product usage data to provide Customer with product analytics, reporting, experimentation, and customer support.

Retention: As described in Section 9 of the DPA.

Transfers to Subprocessors: As described in Schedule C, for the duration of the Agreement.

C. Competent Supervisory Authority

The supervisory authority of the EU Member State in which Customer is established or, where Customer is not established in the EU, the Irish Data Protection Commission.

Schedule B - Technical and Organizational Security Measures (Annex II to the SCCs)

Encryption. Personal Data is encrypted in transit using TLS 1.2 or higher and at rest using AES-256. Encryption keys are managed in a dedicated key management service and rotated at least annually.

Access Control. Access to production systems requires single sign-on with multi-factor authentication and is granted on a least-privilege, role-based basis. Access rights are reviewed quarterly and revoked within one (1) business day of an employee's departure.

Logging and Monitoring. Access to Personal Data and administrative actions are logged, retained for at least twelve (12) months, and monitored for anomalous activity by a security operations function.

Vulnerability Management. Quillfeather performs automated vulnerability scanning weekly, commissions an independent penetration test at least annually, and remediates critical vulnerabilities within fifteen (15) days.

Secure Development. Code changes require peer review, automated security testing, and approval before deployment to production.

Business Continuity. Data is backed up daily to a separate availability zone. Disaster recovery plans are tested annually, with a recovery point objective of twenty-four (24) hours and a recovery time objective of forty-eight (48) hours.

Personnel Security. Personnel undergo background checks where permitted by law, sign confidentiality

agreements, and complete security awareness training on hire and annually.

Physical Security. Production systems are hosted by cloud infrastructure providers whose data centers maintain 24/7 security staff, badge and biometric access controls, video surveillance, and environmental protections. Quillfeather offices restrict access to badge holders and require visitors to sign in and be escorted.

Schedule C - Subprocessor List

All Subprocessors listed below are fictional entities included for testing purposes.

Subprocessor	Purpose	Location	Transfer Mechanism
Nimbus Cloud Hosting Ltd.	Cloud infrastructure and data storage	United States; Germany	SCCs; DPF
Stratus Data Warehouse Inc.	Data warehousing and query processing	United States	SCCs
Beacon Mail Services	Transactional email to authorized users	United States	SCCs
HelpHarbor Support Co.	Customer support ticketing	Ireland	EU (no transfer)
Tracewell Monitoring	Error logging and performance monitoring	United States	SCCs
Quillfeather Analytics India Pvt. Ltd.	Engineering and 24/7 support (affiliate)	India	SCCs